

25NNCV05142 25NNCV05142

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-04

Motion: MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S FORM INTERROGATORIES, SET ONE; REQUEST FOR MONETARY SANCTIONS

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Case Number: 25NNCV05142 Hearing Date: August 4, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

MARK
AGUIRRE,

Plaintiff(s),

vs.

THE
KROGER COMPANY, et al.,

Defendant(s).

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CASE NO.: 25NNCV05142

[TENTATIVE]

ORDER RE: MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO
DEFENDANT'S FORM INTERROGATORIES, SET ONE; REQUEST FOR MONETARY
SANCTIONS

Dept.

3

8:30

a.m.

August 4,
2026

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On November 20, 2025, defendant Ralphs
Grocery Company dba Ralphs ("Defendant") served plaintiff Mark Aguirre
("Plaintiff") with Form Interrogatories, Set One. After several extensions were
granted, Plaintiff's responses were due February 12, 2026. Plaintiff served

responses on February 15, 2026, which Defendant contends were insufficient. Defendant filed this motion on March 20, 2026, to compel Plaintiff to serve further responses. Defendant also requests sanctions be imposed against Plaintiff and the Law Offices of Theida Salazar, jointly and severally, in the amount of \$1,132.

On a motion to compel further responses, the objecting party has the burden of justifying its objections and showing why a further response is not needed. (Coy v. Superior Court (1962) 58 Cal.2d 210; Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) Plaintiff did not oppose this motion and failed to meet his burden to show why further responses should not be ordered. Accordingly, the motion is GRANTED and Plaintiff is ORDERED to serve further responses to Form Interrogatories (Set One) Nos. 6.2, and 10.1 within 20 days of the date of this Order.

Sanctions are imposed against Plaintiff and counsel of record, jointly and severally, in the reduced amount of \$782, consisting of 2 hour at an hourly rate of \$350 and \$82 in filing costs, payable within 20 days of the date of this Order

Moving party to give notice.

Dated
this 4th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from

the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.